

		The Court awards the amount of \$13,591.00 in attorneys' fees. Defendant is ordered to pay Plaintiff the sum of \$13,591.00. The OSC re: dismissal is continued to December 21, 2026 at 10:00 a.m. in Department C27. Plaintiff is ordered to appear if this matter has not been dismissed. Plaintiff is ordered to give notice.
109	2025-01526045 Freeman vs. Massage Envy Franchising, LLC	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint Before the Court is Defendant Sheila Horowitz's Demurrer and Motion to strike parts of Plaintiff Brittany Freeman's Complaint. Per the Notice of Plaintiff's counsel, counsel for both parties met and conferred on 7/7/26 (ROA 91.) In the Notice, Counsel for Plaintiff indicates that as a result of the meet and confer effort, Plaintiff agrees to file a first amended complaint addressing the issues raised in the Motion. Thus, the Court finds the Demurrer and Motion to strike moot.
110	2025-01520411 Smith vs. Canyon Glen Community Association	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Defendants Canyon Glen Community Association ("HOA"), Powerstone Property Management ("Manager"), and Rene Decker's ("Decker") Demurrer to Plaintiff James Smith's ("Plaintiff") First Amended Complaint is sustained in part and overruled in part. The demurrers to the second cause of action for breach of fiduciary duty and the fourth cause of action for gross negligence, as alleged against HOA, are overruled. The remainder of the demurrer is sustained with 15 days leave to amend. <u>1st COA for Breach of Contract & 3rd COA for Breach of the Implied Covenant</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) The demurrer to the breach of contract claim is sustained, because Plaintiff has failed to allege facts showing how HOA materially breached the settlement agreement by sending the (second) check via mail approximately two months after the agreement was entered. Additionally, Plaintiff does not allege any damages from the delay of receiving the (second) check. Thus, the demurrer to the breach of contract claim is sustained. The demurrer to the breach of implied covenant claim is sustained, because it is premised entirely on the same breach alleged as a breach of contract. (See FAC at ¶ 86.) The breach of the implied covenant must involve "something beyond breach of the contractual duty itself." (<i>Tilbury Constructors, Inc. v. State Comp. Ins. Fund</i> (2006) 137 Cal.App.4th 466, 474; see <i>Howard v. American National Fire Ins. Co.</i> (2010) 187 Cal.App.4th 498, 528.) The demurrer to both claims are sustained with leave to amend.